

PETITION - ASK FOR THE CERTIFICATE THAT COMPLETES YOUR EXPUNGEMENT

IN THE COURT

(The detaining or probationary authority that supervised the participant, with the clerk of circuit court as the certificate's destination - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

PARTICIPANT REQUEST THAT THE SUPERVISING OR DETAINING AUTHORITY ISSUE AND FORWARD THE CERTIFICATE OF DISCHARGE (WIS. STAT. Sec. 973.015(1M)(B))

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under Wis. Stat. Sec. 973.015(1m); Wis. Stat. Sec. 973.015(1m)(b) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Section 973.015(1m)(b) makes issuance mandatory rather than discretionary: upon successful completion of the sentence the detaining or probationary authority SHALL issue a certificate of discharge, which shall be forwarded to the court of record and which shall have the effect of expunging the record. The triggering event is successful completion - no subsequent conviction and, where the person was on probation, no revocation and satisfied conditions. Where that mandatory certificate was not issued, or was issued but never forwarded to the clerk, the participant may write to the supervising or detaining authority asking that it be issued and forwarded. No statute or rule prescribes the contents of that request and Wisconsin publishes no official participant form for it, so the correspondence is drafted. The letter supports implementation of an expungement the court already ordered; it does not itself change legal status, and the certificate remains the authority's document.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - full legal name] What is your full legal name, and any other name the case was under?

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.....

[C2 - date of birth] What is your date of birth?

.....
.....

[C3 - return contact details] What postal address, phone number or email should the authority use to reply to you?

.....
.....

[C4 - case number and county] What is the case number, and which Wisconsin county was the case in?

.....
.....

[C5 - supervision identifier] What is your Department of Corrections or offender identification number, if you have one?

(Asked where the sentence included probation or confinement, because it is how the supervising authority locates the file.)

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[C6 - supervising authority] Which agency supervised your probation, or which facility held you?

.....
.....

[C7 - supervising agent name] Do you know the name of your probation agent or the office that supervised you?

(Asked where the sentence included probation; it helps the authority route the request.)

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.....

[C8 - sentence completion date] On what date did you finish your sentence, including any probation?

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.....

[C9 - expungement ordered at sentencing] Did the judge order at your sentencing that the record would be expunged once you completed your sentence?

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.....

[C10 - court office confirmation that the certificate was not received] Have you asked the clerk of court whether they received a certificate of discharge, and what did they say?

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.....

[C11 - request type] Do you want to ask the authority to issue and forward the certificate, or only to tell you whether it has already been done?

.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under Wis. Stat. Sec. 973.015(1m); Wis. Stat. Sec. 973.015(1m)(b).

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only:WI:wi_exp_certificate_of_discharge_followup

STATUS REQUEST - ASK FOR THE CERTIFICATE THAT COMPLETES YOUR EXPUNGEMENT

TO: The detaining or probationary authority that supervised the participant, with the clerk of circuit court as the certificate's destination

.....

FROM: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

DATE OF BIRTH: 1968-12-31

STATUS REQUEST

I am asking the office named above for the current status of my own case, and for the document the record says that office issues.

The matter this request concerns:

Court or office that handled the matter:

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Case or docket number:

.....

Date of the disposition:

.....

What I am asking for:

.....

.....

DATE SIGNATURE

(The person named above signs and dates this request personally.)

Route: obligation:track-only:WI:wi_exp_certificate_of_discharge_followup

FILING INSTRUCTIONS - ASK FOR THE CERTIFICATE THAT COMPLETES YOUR EXPUNGEMENT

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Participant Request that the Supervising or Detaining Authority Issue and Forward the Certificate of Discharge (Wis. Stat. Sec. 973.015(1m)(b)).

Section 973.015(1m)(b) makes issuance mandatory rather than discretionary: upon successful completion of the sentence the detaining or probationary authority SHALL issue a certificate of discharge, which shall be forwarded to the court of record and which shall have the effect of expunging the record. The triggering event is successful completion - no subsequent conviction and, where the person was on probation, no revocation and satisfied conditions. Where that mandatory certificate was not issued, or was issued but never forwarded to the clerk, the participant may write to the supervising or detaining authority asking that it be issued and forwarded. No statute or rule prescribes the contents of that request and Wisconsin publishes no official participant form for it, so the correspondence is drafted. The letter supports implementation of an expungement the court already ordered; it does not itself change legal status, and the certificate remains the authority's document.

WHERE IT GOES

The detaining or probationary authority that supervised the participant, with the clerk of circuit court as the certificate's destination

The letter goes to the supervising or detaining authority, because Sec. 973.015(1m)(b) places the issuing and forwarding duty on it. It asks that the certificate of discharge be issued and forwarded to the clerk of the circuit court of conviction, and asks the authority to confirm when that has been done. A copy to the clerk of circuit court is appropriate where the participant has already confirmed with the clerk that nothing was received.

Venue: Not a court filing. The request is addressed to the supervising or detaining authority for the participant's own case, which is statewide in scope: the Department of Corrections in most probation cases, or the detaining authority where the sentence included confinement.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: none Fee waiver as recorded: none

WHO MUST BE SERVED

Service as recorded: none. Ordinary mail or the authority's stated correspondence channel is sufficient; there is no service requirement. Notice as recorded: none. No notice to any other party is required, and no hearing arises from the request.

WHAT THE RECORD SAYS YOU MUST KNOW

- Confirm with the clerk of circuit court that no certificate of discharge was received before sending the request, and re-check Wisconsin Circuit Court Access afterwards to see whether the record left public access.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- The judge did not order expungement at sentencing. There is no certificate owed and the request would be pointless.
- Any dispute about whether completion was successful, particularly a revocation or a subsequent conviction, because those are the two facts that destroy the expungement entirely.
- The supervising authority declines to issue the certificate, or asserts that completion was not successful.
- The authority does not respond, or responds that it has issued and forwarded the certificate while the clerk says nothing was received.
- Any request to argue entitlement, allege agency fault or press the authority beyond a neutral request. That is individualized advocacy and outside self-help.
- Immigration consequences.
- Federal, tribal or out-of-state records.
- Neutral request only. Do not draft accusations of agency misconduct, assertions of legal entitlement that would require document review, or any individualized advocacy. Where the authority declines or disputes completion, refer to a lawyer.
- After the participant sends the request, issuance and forwarding are the supervising authority's acts and the sealing follows from the certificate reaching the clerk. The packet ends at the letter and the follow-up checklist.

THE PAGES IN THIS SET

- wi_exp_certificate_of_discharge_followup-primary-filing-1: the composed petition, on this route's own statutory ground (Ask for the certificate that completes your expungement)
- wi_exp_certificate_of_discharge_followup-status-request-2: the written status request to the supervising or detaining authority (Ask for the certificate that completes your expungement)

Route: obligation:track-only:WI:wi_exp_certificate_of_discharge_followup